

Defendant argues that the Court's order denying his MSJ "was issued after the Court determined that the motion had not been filed within seven (7) days as required by the Court's prior order." (Motion at 1:6-8.) Defendant misreads the Court's Order denying the MSJ without prejudice.

While it is true that the Court noted that Defendant failed to file the MSJ within seven days of the Order giving the hearing date, that was **not** the basis for the Court denying the motion. Instead, the Court's order exhaustively explains that Defendant failed to show that the MSJ was properly served on Plaintiff.

The Court went on to explain:

Even if the Court were to find that the documents were properly served, the Motion was not timely served. As outlined above, the notice of motion and supporting papers must be served on the opposing party at least 83 days (when serve via fax/email) before the hearing. Given the March 12, 2026, hearing date, that means that the latest the Motion could be served was December 19, 2025. Even if there were evidence the Motion was served the same date it was filed, that would only be 30 days between notice and the hearing – well short of the required 83 days.

"Because it is potentially case dispositive and usually requires considerable time and effort to prepare, a summary judgment motion is perhaps the most important pretrial motion in a civil case. Therefore, the Legislature was entitled to conclude that parties should be afforded a minimum notice period for the hearing of summary judgment motions so that they have sufficient time to assemble the relevant evidence and prepare an adequate opposition." (*McMahon v. Superior Court* (2003) 106 Cal.App.4th 112, 117-18.) In "light of the express statutory language, trial courts do not have authority to shorten the minimum notice period for summary judgment hearings." (*Id.* at 118.)

Defendant has failed to show that the Motion was properly and timely served on Plaintiff.

The issue was not the failure to file the MSJ within seven days of the Order. The issue was that Defendant failed to provide the statutorily **required** notice of at least 81 days – plus additional time depending on method of service. As noted above, the Court did not and does not have the authority to shorten that time. As such, the Court cannot vacate the order denying Defendant's MSJ.

It is also worth noting that the Order is not a ruling on the merits. It merely found that proper notice was not given and therefore was explicitly made "**without prejudice** to [Defendant] requesting a new hearing date and filing/serving the papers as required by the Code." (March 12 Order.) Defendant is still free to re-file the papers provided he obtains a hearing date and files/serves the papers with proper notice.

Conclusion

Defendant Charlie Ross' Motion to Vacate Order denying Motion for Summary Judgment is **denied**.

3. 9:00 AM CASE NUMBER: C23-02746
CASE NAME: RALPH REYES VS. NISSAN NORTH AMERICA, INC.
PAYMENT OF ATTORNEY FEES AND REIMBURSEMENT OF COSTS
FILED BY: REYES, RALPH LOUIE
TENTATIVE RULING:

Plaintiff Ralph Reyes moves for attorneys' fees and reimbursement of costs. His case against Nissan North America, Inc. resolved with an eventual agreement for the Court to determine this motion. Although it appears that Nissan was served with this Motion (via counsel) on April 8, 2026, the Court has received no opposition.

Plaintiff filed this case under the Song-Beverly Consumer Warranty Act on October 27, 2023. After engaging in a modest amount of discovery, the parties signed a settlement agreement on May 27, 2025. The parties agreed that Nissan would pay Reyes's reasonable attorney's fees, costs, and expenses in an amount determined by the Court. Efforts to resolve that issue prior to Court determination appear to have been unsuccessful. Reyes filed a Motion for Attorneys' Fees and Costs on October 15, 2025, with a hearing set for April 9, 2026. On April 6, 2026, the Reyes withdrew his Motion. He refiled it April 8, 2026.

Although the Motion received no opposition, the Court does have an obligation to review the documents and did so. Civ. Code § 1794(d). The statute "requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount."

(*Nightingale v. Hyundai Motor America* (1994) 31 Cal.App.4th 99, 104.) A prevailing buyer has the burden of "showing that the fees incurred were 'allowable,' were 'reasonably necessary to the conduct of the litigation,' and were 'reasonable in amount.'" (*Levy v. Toyota Motor Sales, U.S.A., Inc.* (1992) 4 Cal. App. 4th 807, 816.)

Without any opposition, the Court cannot gain substantial insight into whether certain activities were unwarranted, so the best review the Court can perform is a high-level review to ensure the billing appears reasonable. It does, with one exception. Counsel's flat-fee arrangement for the pre-filing activity is block-billing. It appear to represent approximately 6.5 hours of work, and the Court cannot discern whether that comes even close to what counsel performed. The Court will therefore reduce that amount to two hours of work, which appears reasonable for the work performed.

Counsel also presents sufficient evidence to support the requested hourly rates for the individuals sought. The Court approves the rates of \$600 per hour for Aaron Fhima, \$450 per hour in 2023 and 2024 and \$525 per hour in 2025 for Gabrielle Diamese, and the paralegal rate of \$200 per hour.

Counsel seeks a 0.2% multiplier. The justification for this multiplier is inadequate. This appears to a run-of-the-mill Song-Beverly matter. Although it was litigated more than so may be, that in itself is not reason for a multiplier. A two year case length is actually relatively short comparatively.

Finally, counsel seeks \$6,283.30 for costs. All costs appeared to the Court to be reasonable and recoverable *except* the August 29, 2024 cost for \$210, as the invoice shows it related to a different case in a different county.

The Court therefore awards a total of **\$44,901.80** in fees and **\$6,073.30** in costs.

4. 9:00 AM CASE NUMBER: C24-01458
CASE NAME: KHOI SENDEROWICZ VS. SPECIALIZED LOAN SERVICING, LLC
1ST AMENDED COMPLAINT
FILED BY: SPECIALIZED LOAN SERVICING, LLC
TENTATIVE RULING:

Before the Court is Defendant Specialized Loan Servicing, LLC and Defendant NewRez, LLC dba Shellpoint Mortgage Servicing fka Specialized Loan Servicing, LLC (collectively, “Defendants”)’s Demurrer. The Demurrer relates to Plaintiff Khoi Senderowicz (“Plaintiff”)’s First Amended Complaint for (1) Violations of Real Estate Settlement Procedures Act; (2) Violations of California Civil Code § 2924 et seq.; (3) Laches, Abandonment, and Equitable Estoppel; (4) Breach of Written Contract; (5) Breach of Implied Covenant of Good Faith and Fair Dealing; (6) Unfair Business Practices; (7) Negligent Loan Servicing; (8) Intentional Infliction of Emotional Distress; (9) Violation of Rosenthal Fair Debt Collection Practices Act; and (10) Declaratory Relief.

For the following reasons, the Demurrer is **sustained** both with and without leave to amend, as described further below.

Judicial Notice

Defendants request judicial notice of several recorded documents. Judicial notice may be taken of “the fact of a document’s recordation, the date the document was recorded and executed, the parties to the transaction reflected in a recorded document, and the document’s legally operative language, assuming there is no genuine dispute regarding the document’s authenticity. From this, the court may deduce and rely upon the legal effect of the recorded document, when that effect is clear from its face.” (*Fontenot v. Wells Fargo Bank, N.A.* (2011) 198 Cal.App.4th 256, 265 disapproved on another point by *Yvanova v. New Century Mortgage Corp.* (2016) 62 Cal.4th 919.) The Court **grants** judicial notice of Exhibits 1 through 8 and exhibits 10 and 11.

With respect to the Defendants’ request for judicial notice of Exhibit 9 (a newspaper article from SFGATE), it is unclear whether the fact that a particular newspaper published an article on a particular subject on a particular date is either “of such common knowledge within the territorial jurisdiction of the court that they cannot reasonably be the subject of dispute” (Evid. Code, § 452, subd. (g)) or “are